

IN THE SENATE

SENATE BILL NO. 1266

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO FOSTER CARE PLACEMENT; AMENDING SECTION 16-1622, IDAHO CODE, TO REVISE PROVISIONS REGARDING PARENTAL RIGHTS AND EXTENDED FOSTER CARE ORDERS; AMENDING SECTION 16-2002, IDAHO CODE, TO REVISE A DEFINITION; AMENDING SECTION 39-1202, IDAHO CODE, TO REVISE DEFINITIONS AND TO DEFINE A TERM; AMENDING SECTION 39-1211A, IDAHO CODE, TO REVISE PROVISIONS REGARDING PLACEMENT OF CHILDREN; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 16-1622, Idaho Code, be, and the same is hereby amended to read as follows:

16-1622. REVIEW HEARINGS -- STATUS HEARINGS -- ANNUAL PERMANENCY HEARINGS. (1) Review hearing.

(a) A hearing for review of the child's case and permanency plan shall be held no later than six (6) months after entry of the court's order taking jurisdiction under this act and every two (2) months thereafter. The department and the guardian ad litem shall file reports to the court no later than five (5) days prior to the ~~two (2) month review~~ hearing. The purpose of the review hearing is:

(i) To determine:

1. The safety of the child;
2. The continuing necessity for and appropriateness of the placement;
3. The extent of compliance with the case plan; and
4. The extent of progress that has been made toward alleviating or mitigating the causes necessitating placement in foster care;

(ii) To determine or continue to investigate whether the child is an Indian child. If there is reason to believe that the child is an Indian child and there has not been a final determination regarding the child's status as an Indian child:

1. The department shall document and the court shall inquire about the efforts that have been made since the last hearing to determine whether the child is an Indian child; and
2. The department shall document and the court shall determine that the department is using active efforts to work with all tribes of which the child may be a member to verify whether the child is a member or eligible for membership;

(iii) To inquire regarding the child's educational stability. The department shall document and the court shall inquire as to the efforts made to ensure educational stability for the child, including the efforts made to keep the child in the school in which the

child is enrolled at the time of placement or the reason that remaining in the school is not in the child's best interests;

(iv) To inquire regarding sibling placement. The department shall document and the court shall inquire whether siblings were placed together or, if siblings were not placed together, the efforts made to place siblings together, the reasons why siblings were not placed together, and a plan for ensuring frequent visitation or ongoing interaction between the siblings, unless visitation or ongoing interaction would be contrary to the safety or well-being of one (1) or more of the siblings;

(v) To inquire regarding permanency. The court shall ask each youth age twelve (12) years and older about his desired permanency outcome and discuss with the youth his current permanency plan. For a youth age fourteen (14) years and older, the hearing shall include a review of the services needed to assist the youth to make the transition from foster care to successful adulthood;

(vi) To document efforts related to the reasonable and prudent parent standard. For a youth whose permanency goal is another planned permanent living arrangement, the department shall document:

1. That the youth's foster parents or child care institution is following the reasonable and prudent parent standard when deciding whether the child may participate in extracurricular, enrichment, cultural and social activities; and

2. The regular, ongoing opportunities to engage in age- or developmentally appropriate activities that have been provided to the youth;

(vii) To document efforts made to find a permanent placement other than another planned permanent living arrangement. For a youth whose permanency goal is another planned permanent living arrangement, the department shall document:

1. The intensive, ongoing, and, as of the date of the hearing, unsuccessful efforts made to place the youth with a parent, in an adoptive placement, in a guardianship, or in the legal custody of the department in a placement with a fit and willing relative, including an adult sibling; and

2. Why another planned permanent living arrangement is the best permanency plan for the youth and a compelling reason why, as of the date of the review hearing, it would not be in the best interest of the child to be placed permanently with a parent, in an adoptive placement, in a guardianship, or in the legal custody of the department in a placement with a fit and willing relative, including an adult sibling;

(viii) To make findings regarding a permanency goal of another planned permanent living arrangement. For youth whose permanency goal is another planned permanent living arrangement, the court shall make written, case-specific findings, as of the date of the hearing, that:

1. Another planned permanent living arrangement is the best permanency goal for the youth; and

2. There are compelling reasons why it is not in the best interest of the youth to be placed permanently with a parent, in an adoptive placement, in a guardianship, or in the legal custody of the department in a placement with a fit and willing relative, including an adult sibling;

(ix) To document and inquire regarding psychotropic medication. At each review hearing, if the child is being treated with psychotropic medication, these additional requirements shall apply:

1. The department shall report to the court the medication and dosage prescribed for the child and the medical professional who prescribed the medication; and

2. The court shall inquire as to, and may make any additional inquiry relevant to, the use of psychotropic medication; and

(x) To project, when reasonable, a likely date by which the child may be safely returned to and maintained in the home or placed in another permanent placement.

(b) A status hearing is a review hearing that does not address all or most of the purposes identified in paragraph (a) of this subsection and may be held at the discretion of the court. Neither the department nor the guardian ad litem is required to file a report with the court prior to a status hearing, unless ordered otherwise by the court.

(c) A motion for revocation or modification of an order issued under section 16-1619, Idaho Code, may be filed by the department or any party; provided that no motion may be filed by the respondents under this section within three (3) months of a prior hearing on care and placement of the child. Notice of a motion for review of a child's case shall be provided to the parents and other legal guardians, the prosecuting attorney or deputy attorney general, the guardian ad litem, the attorney for the child, the department and foster parents.

(d) If the motion filed under paragraph (c) of this subsection alleges that the child's best interests are no longer served by carrying out the order issued under section 16-1619, Idaho Code, or that the department or other authorized agency has failed to provide adequate care for the child, the court shall hold a hearing on the motion.

(e) The department or authorized agency may move the court at any time to vacate any order placing a child in its custody or under its protective supervision.

(2) Permanency plan and hearing.

(a) The permanency plan shall include a permanency goal. The permanency goal may be one (1) of the following: continued efforts at reunification, in the absence of a judicial determination of aggravated circumstances; or termination of parental rights and adoption, guardianship or, for youth age sixteen (16) years and older only, another planned permanent living arrangement. Every permanency plan shall include the information set forth in section 16-1621(3)(a) and (b), Idaho Code. If the permanency plan has reunification as a permanency goal, the plan shall include information set forth in section 16-1621(3)(c), Idaho Code; however, if the circumstances that caused the child to be placed into protective custody resulted in a conviction for lewd and lascivious conduct or felony injury to a child, if the child

1 has been in protective custody for more than six (6) months, or if a  
2 high risk of repeat maltreatment or reentry into foster care exists due  
3 to a parent's recent completion of substance abuse treatment or other  
4 compelling circumstances, then the permanency plan shall include a  
5 period of protective supervision or trial home visit period of no less  
6 than ninety (90) days prior to the court vacating the case. During the  
7 protective supervision or trial home visit period, the department shall  
8 make regular home visits. During the protective supervision or trial  
9 home visit period, the court shall hold one (1) or more review hearings  
10 for each permanency plan where a period of protective supervision or a  
11 trial home visit has been imposed and may require participation in sup-  
12 portive services, including community home visiting and peer-to-peer  
13 mentoring. Families reunified following a period of protective super-  
14 vision or a trial home visit should be encouraged by the department or  
15 the court to continue to participate in supportive services when ben-  
16 eficial and appropriate. If the permanency plan has a permanency goal  
17 other than reunification, the plan shall include the information set  
18 forth in section 16-1621(3) (d), Idaho Code, and if the permanency goal  
19 is termination of parental rights and adoption, then in addition to the  
20 information set forth in section 16-1620(3), Idaho Code, the permanency  
21 plan shall also name the proposed adoptive parents when known. If the  
22 adoptive parents are not known at the time the permanency plan is pre-  
23 pared, then the department shall amend the plan to name the proposed  
24 adoptive parents as soon as such person or persons become known. The  
25 court may approve a permanency plan that includes a primary goal and a  
26 concurrent goal. As used in this paragraph, "trial home visit" means  
27 that a child is returned to the care of the parent or guardian from whom  
28 the child was removed with the department continuing to have legal cus-  
29 tody of the child.

30 (b) A permanency hearing shall be held no later than twelve (12) months  
31 from the date the child is removed from the home or the date of the  
32 court's order taking jurisdiction under this chapter, whichever occurs  
33 first, and at least every twelve (12) months thereafter, as long as the  
34 court has jurisdiction over the child. The court shall approve, reject  
35 or modify the permanency plan of the department and review progress in  
36 accomplishing the permanency goal. The permanency plan, as approved by  
37 the court, shall be entered into the record as an order of the court. A  
38 permanency hearing may be held at any time and may be combined with the  
39 review hearing required under subsection (1) of this section.

40 (c) The court shall make written, case-specific findings whether the  
41 department made reasonable efforts to finalize the primary permanency  
42 goal in effect for the child. Lack of reasonable efforts to reunify may  
43 be a basis for an order approving a permanency plan with a permanency  
44 goal of reunification.

45 (d) Where the permanency goal is not reunification, the hearing shall  
46 include a review of the department's consideration of options for  
47 in-state and out-of-state placement of the child. In the case of a  
48 child in an out-of-state placement, the court shall determine whether  
49 the out-of-state placement continues to be appropriate and in the best  
50 interest of the child.

(e) The court shall ask each youth age twelve (12) years and older about his desired permanency outcome and discuss with the youth his current permanency plan. In the case of a child who has attained the age of fourteen (14) years and older, the hearing shall include a determination of the services needed to assist the youth to make the transition from foster care to successful adulthood.

(f) The court may approve a primary permanency goal of another planned permanent living arrangement only for youth age sixteen (16) years or older and only upon written, case-specific findings that, as of the date of the hearing:

(i) Another planned permanent living arrangement is the best permanency goal for the youth; and

(ii) There are compelling reasons why it is not in the best interest of the youth to be placed permanently with a parent, in an adoptive placement, in a guardianship, or in the legal custody of the department in a placement with a fit and willing relative, including an adult sibling.

(g) If the child has been in the temporary or legal custody of the department for twelve (12) of the most recent twenty-two (22) months, the department shall file, prior to the last day of the ~~fifteenth~~ twelfth month, a petition to terminate parental rights, unless the court finds that:

(i) The child is placed permanently with a relative;

(ii) There are compelling reasons why termination of parental rights is not in the best interests of the child; or

(iii) The department has failed to provide reasonable efforts to reunify the child with his family.

(h) The department shall document and the court shall inquire:

(i) As to the efforts made to ensure educational stability for the child, including the efforts made to keep the child in the school in which the child is enrolled at the time of placement or that remaining in the school is not in the child's best interests; and

(ii) That siblings were placed together or, if siblings were not placed together, the efforts made to place siblings together, the reasons why siblings were not placed together or why a joint placement would be contrary to the safety or well-being of one (1) or more of the siblings and a plan for ensuring frequent visitation or ongoing interaction among siblings, unless visitation or ongoing interaction would be contrary to the safety or well-being of one (1) or more of the siblings.

(i) If there is reason to believe that the child is an Indian child and there has not been a final determination regarding the child's status as an Indian child, the department shall document and the court shall:

(i) Inquire about the efforts that have been made since the last hearing to determine whether the child is an Indian child; and

(ii) Determine that the department has made active efforts to work with all tribes of which the child may be a member to verify whether the child is a member or eligible for membership.

(j) At each permanency hearing, if the child is being treated with psychotropic medication, these additional requirements shall apply:

(i) The department shall report to the court the medication and dosage prescribed for the child and the medical professional who prescribed the medication; and

(ii) The court shall inquire as to, and may make any additional inquiry relevant to, the use of psychotropic medication.

(k) The court may authorize the department to suspend further efforts to reunify the child with the child's parent, pending further order of the court, when a permanency plan is approved by the court and the permanency plan does not include a permanency goal of reunification.

(3) If a youth is in the legal custody of the department or other authorized agency and is within ninety (90) days of his eighteenth birthday, the department shall file a report with the court that includes the department's transition plan for the youth. The court shall have a review or permanency hearing at which the court shall:

(a) Discuss with the youth his or her transition plan; and

(b) Review the transition plan with the youth for purposes of ensuring that the plan provides the services necessary to allow the youth to transition to a successful adulthood.

(4) If a child is in the legal custody of the department and the court has approved placement of the child in a qualified residential treatment program, then at each review hearing pursuant to subsection (1) (a) of this section and at each permanency hearing pursuant to subsection (2) (b) of this section the department shall document:

(a) That ongoing assessment of the strengths and needs of the child continues to support the determination that the needs of the child cannot be met through placement in a foster family home, that the placement in a qualified residential treatment program provides the most effective and appropriate level of care for the child that is in the least restrictive environment, and that the placement is consistent with the short-term and long-term goals for the child, as specified in the permanency plan for the child;

(b) The specific treatment or service needs that will be met for the child in the placement and the length of time the child is expected to need the treatment or services; and

(c) The efforts made by the department to prepare the child to return home or to be placed with a fit and willing relative, a legal guardian, or an adoptive parent or in a foster family home.

(5) Notwithstanding any provision of law to the contrary, the court may order extended foster care for a person between the ages of eighteen (18) and twenty-three (23) years to help such person achieve a successful transition to adulthood, provided such person must have been in the custody of the department until his eighteenth birthday and must meet the criteria set forth in 42 U.S.C. 675(8) (B) (iv). The extension shall be for a fixed period of time and shall not extend past the person's twenty-third birthday. The court shall hold review hearings at least once every six (6) months after an order for extended foster care has been entered. The two (2) month review hearing timeline requirement pursuant to subsection (1) of this section shall not apply to extended foster care orders.

SECTION 2. That Section 16-2002, Idaho Code, be, and the same is hereby amended to read as follows:

1 16-2002. DEFINITIONS. When used in this chapter, unless the text oth-  
 2 erwise requires:

3 (1) "Court" means the district court or magistrate's division thereof  
 4 or, if the context requires, a judge or magistrate thereof.

5 (2) "Child" or "minor" means any individual who is under the age of  
 6 eighteen (18) years.

7 (3) "Neglected" means:

8 (a) Conduct as defined in section 16-1602(31), Idaho Code; or

9 (b) The parent(s) has failed to comply with the court's orders or the  
 10 case plan in a child protective act case and:

11 (i) The department has had temporary or legal custody of the child  
 12 for twelve (12) of the most recent twenty-two (22) months; and

13 (ii) Reunification has not been accomplished by the last day of  
 14 the ~~fifteenth~~ twelfth month in which the child has been in the tem-  
 15 porary or legal custody of the department.

16 (4) "Abused" means conduct as defined in section 16-1602(1), Idaho  
 17 Code.

18 (5) "Abandoned" means the parent has willfully failed to maintain a  
 19 normal parental relationship, including but not limited to reasonable sup-  
 20 port or regular personal contact. Failure of the parent to maintain this  
 21 relationship without just cause for a period of one (1) year shall constitute  
 22 prima facie evidence of abandonment under this section; provided however,  
 23 where termination is sought by a grandparent seeking to adopt the child, the  
 24 willful failure of the parent to maintain a normal parental relationship as  
 25 provided herein without just cause for six (6) months shall constitute prima  
 26 facie evidence of abandonment.

27 (6) "Legal custody" means status created by court order that vests in a  
 28 custodian the following rights and responsibilities:

29 (a) To have physical custody and control of the child and to determine  
 30 where and with whom the child shall live;

31 (b) To supply the child with food, clothing, shelter and incidental ne-  
 32 cessities;

33 (c) To provide the child with care, education and discipline; and

34 (d) To authorize medical, dental, psychiatric, psychological and other  
 35 remedial care and treatment for the child, including care and treatment  
 36 in a facility with a program of services for children.

37 However, such rights and responsibilities shall be exercised subject to the  
 38 powers, rights, duties and responsibilities of the guardian of the person.

39 (7) "Guardianship of the person" means those rights and duties imposed  
 40 upon a person appointed as guardian of a minor under the laws of Idaho. It  
 41 includes but is not necessarily limited either in number or kind to:

42 (a) The authority to consent to marriage, to enlistment in the armed  
 43 forces of the United States, and to major medical, psychiatric and sur-  
 44 gical treatment; to represent the minor in legal actions; and to make  
 45 other decisions concerning the child of substantial legal signifi-  
 46 cance;

47 (b) The authority and duty of reasonable visitation, except to the ex-  
 48 tent that such right of visitation has been limited by court order;

1 (c) The rights and responsibilities of legal custody, except where le-  
2 gal custody has been vested in another individual or in an authorized  
3 child placement agency; and

4 (d) When the parent and child relationship has been terminated by judi-  
5 cial decree with respect to the parents, or only living parent, or when  
6 there is no living parent, the authority to consent to the adoption of  
7 the child and to make any other decision concerning the child which the  
8 child's parents could make.

9 (8) "Guardian ad litem" means a person appointed by the court pursuant  
10 to section 16-1614 or 5-306, Idaho Code.

11 (9) "Authorized agency" means the department, a local agency, a person,  
12 an organization, corporation, benevolent society or association licensed  
13 or approved by the department or the court to receive children for control,  
14 care, maintenance or placement.

15 (10) "Department" means the department of health and welfare and its au-  
16 thorized representatives.

17 (11) "Parent" means:

18 (a) The birth mother or the adoptive mother;

19 (b) The adoptive father;

20 (c) The biological father of a child conceived or born during the fa-  
21 ther's marriage to the birth mother; and

22 (d) The unmarried biological father whose consent to an adoption of the  
23 child is required pursuant to section 16-1504, Idaho Code.

24 (12) "Presumptive father" means a man who is or was married to the birth  
25 mother and the child is born during the marriage or within three hundred  
26 (300) days after the marriage is terminated.

27 (13) "Parent and child relationship" includes all rights, privileges,  
28 duties and obligations existing between parent and child, including inheri-  
29 tance rights, and shall be construed to include adoptive parents.

30 (14) "Parties" includes the child and the petitioners.

31 (15) "Unmarried biological father," as used in this chapter and chapter  
32 15, title 16, Idaho Code, means the biological father of a child who was not  
33 married to the child's mother at the time the child was conceived or born.

34 (16) "Unmarried biological mother," as used in this chapter, means the  
35 biological mother of a child who was not married to the child's biological  
36 father at the time the child was conceived or born.

37 (17) "Disability" means, with respect to an individual, any mental or  
38 physical impairment that substantially limits one (1) or more major life  
39 activities of the individual, including but not limited to self-care, man-  
40 ual tasks, walking, seeing, hearing, speaking, learning, or working, or a  
41 record of such an impairment, or being regarded as having such an impairment.  
42 Disability shall not include transvestism, transsexualism, pedophilia,  
43 exhibitionism, voyeurism, other sexual behavior disorders, or substance use  
44 disorders, compulsive gambling, kleptomania, or pyromania. Sexual prefer-  
45 ence or orientation is not considered an impairment or disability. Whether  
46 an impairment substantially limits a major life activity shall be determined  
47 without consideration of the effect of corrective or mitigating measures  
48 used to reduce the effects of the impairment.



1 (18) "Adaptive equipment" means any piece of equipment or any item that  
 2 is used to increase, maintain, or improve the parenting abilities of a parent  
 3 with a disability.

4 (19) "Supportive services" means services that assist a parent with a  
 5 disability to compensate for those aspects of their disability that affect  
 6 their ability to care for their child and that will enable them to discharge  
 7 their parental responsibilities. The term includes specialized or adapted  
 8 training, evaluations, or assistance with effective use of adaptive equip-  
 9 ment and accommodations that allow a parent with a disability to benefit from  
 10 other services, such as Braille texts or sign language interpreters.

11 SECTION 3. That Section 39-1202, Idaho Code, be, and the same is hereby  
 12 amended to read as follows:

13 39-1202. DEFINITIONS. For the purposes of this chapter:

14 (1) "Board" means the Idaho board of health and welfare.

15 (2) "Child care" means that care, control, supervision or maintenance  
 16 of children for twenty-four (24) hours a day provided as an alternative to  
 17 parental care.

18 (3) "Child" means an individual less than eighteen (18) years of age who  
 19 is not enrolled in an institution of higher education.

20 (4) "Children's agency" means a person who operates a business for the  
 21 placement of children in foster homes or for adoption in a permanent home  
 22 and who does not provide child care as part of that business. Children's  
 23 agency does not include a licensed attorney or physician assisting or pro-  
 24 viding natural and adoptive parents with legal services or medical services  
 25 necessary to initiate and complete adoptive placements.

26 (5) "Children's camp" means a program of child care at a location  
 27 away from the child's home that is primarily recreational and includes the  
 28 overnight accommodation of the child and is not intended to provide treat-  
 29 ment, therapy or rehabilitation for the child.

30 (6) "Children's institution" means a person who operates a residential  
 31 facility for children not related to that person, if that person is an in-  
 32 dividual, for the purpose of providing child care. Children's institutions  
 33 include, but are not limited to, foster homes, maternity homes, children's  
 34 therapeutic outdoor programs, or any facilities providing treatment, ther-  
 35 apy or rehabilitation for children. Children's institutions do not include:  
 36 (a) facilities that provide only daycare as defined in chapter 11, title 39,  
 37 Idaho Code; (b) facilities and agencies including hospitals, skilled nurs-  
 38 ing facilities, intermediate care facilities, and intermediate care facil-  
 39 ities for people with intellectual disabilities licensed pursuant to chap-  
 40 ter 13, title 39, Idaho Code; (c) day schools; (d) individuals acting in an  
 41 advisory capacity, counseling a child in a religious context, and providing  
 42 no child care associated with the advice; or (e) the occasional or irregular  
 43 care of a neighbor's, relative's or friend's child or children by a person  
 44 not ordinarily engaged in child care.

45 (7) "Children's residential care facility" means a children's institu-  
 46 tion, excluding:

47 (a) Foster homes;

48 (b) Residential schools;

49 (c) Children's camps.

1 No facility expressly excluded from the definition of a children's institu-  
 2 tion is included within the definition of a children's residential care fa-  
 3 cility.

4 (8) "Children's therapeutic outdoor program" is a program designed to  
 5 provide behavioral, substance abuse, or mental health services to minors in  
 6 an outdoor setting. This does not include children's camps, church camps,  
 7 or other outdoor programs primarily designed to be educational or recre-  
 8 ational, such as Boy Scouts, Girl Scouts, 4-H or sports camps.

9 (9) "Continued care" means the ongoing placement of an individual in a  
 10 foster home, children's residential care facility, or transitional living  
 11 placement who reaches the age of eighteen (18) years but is less than twenty-  
 12 three (23) years of age.

13 (10) "Day school" means a public, private, parochial or secular facil-  
 14 ity offering an educational program in which the children leave the facility  
 15 each day at the conclusion of the academic, vocational or school-supervised  
 16 activities.

17 (11) "Department" means the state department of health and welfare.

18 (12) "Director" means the director of the department of health and wel-  
 19 fare.

20 (13) "Foster care" means child care by a person not related to the child,  
 21 in lieu of parental care, in a foster home. The term also includes care pro-  
 22 vided by kin when placement has been made by the department and the kin are  
 23 licensed by the department pursuant to 39-1211A, Idaho Code.

24 (14) "Foster home" means a home that accepts, for any period of time,  
 25 with or without compensation, one (1) or more children who are not related  
 26 to the foster parent as members of the household for the purpose of providing  
 27 substitute parental care. The term also includes a home of kin when place-  
 28 ment has been made by the department and the kin is licensed by the department  
 29 pursuant to 39-1211A, Idaho Code.

30 (15) "Group care" means foster care of a number of children for whom  
 31 child care in a family setting is not available or appropriate in a dormitory  
 32 or cottage type setting characterized by activities and discipline of a more  
 33 regimented and less formal nature than found in a family setting.

34 (16) "Juvenile detention" is as defined in section 20-502(8), Idaho  
 35 Code, of the juvenile corrections act.

36 (17) "Juvenile detention center" means a facility established pursuant  
 37 to sections 20-517 and 20-518, Idaho Code.

38 (18) "Kin" means all relatives pursuant to this chapter, extended fam-  
 39 ily members, and those who have a significant family-like relationship with  
 40 a child.

41 ~~(18)~~ (19) "Person" includes any individual, group of individuals, asso-  
 42 ciation, partnership, limited liability company or corporation.

43 ~~(19)~~ (20) "Placement" means finding a suitable licensed foster home or  
 44 suitable adoptive home for a child and completing the arrangements for a  
 45 child to be accepted into and adjusted to such home.

46 ~~(20)~~ (21) "Relative" means a child's grandparent, great grandparent,  
 47 aunt, great aunt, uncle, great uncle, brother-in-law, sister-in-law, first  
 48 cousin, sibling or half-sibling.

49 ~~(21)~~ (22) "Representative" means an employee of the state department of  
 50 health and welfare.

1       ~~(22)~~ (23) "Residential facility" means any facility where child care is  
 2 provided, as defined in this section, and that provides day and night accom-  
 3 modation.

4       ~~(23)~~ (24) "Residential school" means a residential facility for chil-  
 5 dren that:

6       (a) Provides a planned, scheduled, regular, academic or vocational  
 7 school program for students in the elementary, middle or secondary  
 8 grades as defined in section 33-1001, Idaho Code; and

9       (b) Provides services substantially comparable to those provided in  
 10 nonresidential public schools where the primary purpose is the educa-  
 11 tion and academic pursuits of the students; and

12       (c) Does not seek, receive or enroll students for treatment of such spe-  
 13 cial needs as substance abuse, mental illness, emotional disturbance,  
 14 developmental disability or intellectual disability; and

15       (d) Is not:

16           (i) A college or university;

17           (ii) A children's camp as defined in this section; or

18           (iii) A public or private day school in which the children leave  
 19 the facility each day at the conclusion of the academic, voca-  
 20 tional or school-supervised activities.

21       ~~(24)~~ (25) "Transitional living" means living arrangements and after-  
 22 care services for children, or as continued care, to gain experience living  
 23 on their own in a supportive and supervised environment prior to emancipa-  
 24 tion.

25       SECTION 4. That Section 39-1211A, Idaho Code, be, and the same is hereby  
 26 amended to read as follows:

27       39-1211A. ~~RELATIVE FOSTER CARE KINSHIP FOSTER CARE -- LIMITED VARI-~~  
 28 ANCE OR WAIVER. (1) ~~A relative~~ Kin providing foster care for a ~~related~~ child  
 29 pursuant to chapter 16, title 16, Idaho Code, must be licensed in accordance  
 30 with this chapter.

31       (2) Notwithstanding the provisions of subsection (1) of this section,  
 32 the department may expedite placement with a relative, issue a foster care  
 33 license, or grant a limited variance or waiver of a licensing standard or re-  
 34 quirement, ~~or~~ for a relative. The department may establish separate stan-  
 35 dards or requirements for licensure of ~~relatives~~ kin if, in the department's  
 36 judgment, the health and safety of the ~~related~~ child is not thereby endan-  
 37 gered.

38       (3) If the department grants a limited variance or waiver of a licensing  
 39 standard or requirement to the child's relative pursuant to this section,  
 40 the department shall document the grounds for granting the limited variance  
 41 or waiver and the reasons the limited variance or waiver will not compromise  
 42 the related child's safety and health.

43       (4) A limited variance or waiver of a licensing standard or requirement  
 44 granted to a child's relative pursuant to this section shall be reviewed by  
 45 the department for continuing compliance, need, and approval at regular in-  
 46 tervals, subject to the provisions of section 39-1113, Idaho Code.

1       SECTION 5. An emergency existing therefor, which emergency is hereby  
2 declared to exist, this act shall be in full force and effect on and after  
3 July 1, 2026.